

25TRCV01782 25TRCV01782

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-07

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Case Number: 25TRCV01782 Hearing Date: July 7, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

VIOLA

ANTONINI,

Plaintiff,

Case No.:

25TRCV01782

vs.

[Tentative]

RULING

VOLKSWAGEN

GROUP OF AMERICA, INC., et al.,

Defendants.

Hearing

Date: July 7, 2026

Moving

Parties: Defendant Volkswagen Group of America, Inc.

Responding

Party: Plaintiff Viola Antonini

(1)

Motion

to Compel Vehicle Inspection

(2)

Motion

to Compel Deposition of Plaintiff

The Court considered the moving, opposition, and reply papers.

RULING

The

motion to compel plaintiff's vehicle inspection is GRANTED. Plaintiff is ordered to appear for deposition at a mutually agreeable time within fifteen days.

The

motion to compel plaintiff's deposition is GRANTED. Plaintiff is ordered to appear at a mutually agreeable time and place within fifteen days.

BACKGROUND

On June 2, 2025, plaintiff Viola Antonini filed a complaint against Volkswagen Group of America, Inc. for violations of Song-Beverly Act violations and against Walter Timmons Enterprises, Inc. for negligent repair as to a 2023 Volkswagen Tiguan purchased on March 26, 2023.

On March 17, 2026, plaintiff filed a request for

dismissal as to Walter Timmons Enterprises, Inc.

Trial is scheduled for September 22, 2026.

LEGAL

AUTHORITY

Deposition

CCP

§2025.450(a) provides: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice."

CCP

§2025.450(b) provides, "A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

Inspection
of Vehicle

Under

CCP §2031.010, "(a) Any party may obtain discovery within the scope delimited

by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.

(b) A

party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made."

DISCUSSION

Compel
deposition

Defendant

requests that the Court compel plaintiff to appear for deposition by remote electronic means and produce documents within fifteen days.

Defendant

explains that on July 14, 2025, defense counsel sent a notice of representation to plaintiff's counsel wherein defendant informed plaintiff of its intent to depose plaintiff within 90-120 days and requested that plaintiff promptly provide her availability for deposition.

On February 12, 2026, defendant served plaintiff with notice of deposition for March 31. Plaintiff's

counsel requested that defense counsel meet and confer to reschedule the deposition on a date and time that is mutually agreeable. On April 8, defense counsel emailed plaintiff's counsel to meet and confer requesting dates for plaintiff's deposition. Plaintiff's counsel did not respond. On April 15 and 23, defense counsel sent follow up correspondence. To date, defendant asserts, plaintiff has failed to provide alternative dates for her deposition.

In

opposition, plaintiff asserts that plaintiff's counsel (Brian Cohen) tasked with managing plaintiff depositions was not included on any meet and confer

correspondence. Plaintiff contends that attorney Cohen has worked with defense counsel on numerous cases and "based on that extensive experience," defense counsel is "well aware" that Cohen should be included on all correspondence related to plaintiff depositions (and vehicle inspections). As such, plaintiff asserts, Cohen was not aware that staff was neglecting to respond to defense counsel's emails and that plaintiff fully intends on sitting for deposition and that counsel "hopes" to have available dates prior to the hearing. Plaintiff also argues that she timely served a valid objection and that defense counsel did not inquire about the nonappearance as required by CCP §2025.450(b)(2).

In reply, defendant argues that it acted in good faith and exhausted multiple meet and confer efforts before filing the motion.

Defendant asserts that attorney Cohen has not appeared in any capacity on this case and has not been included on any communications with defense counsel. Defendant states that defense counsel initiated meet and confer correspondence by responding directly to the service email of plaintiff's objections.

Defendant states that defense counsel sent all meet and confer correspondence to every individual from plaintiff's counsel's office that was copied on the original service email, including lead counsel. Defendant also argues that plaintiff failed to serve any valid objections.

The Court finds that defendant served a valid and proper deposition notice and that plaintiff failed to serve a valid objection based on unavailability. Although not being available may be a reason to not attend as a practical matter, it is not a valid objection under CCP §2025.410.

Defense counsel also sufficiently met and conferred.

The motion is GRANTED.

Compel vehicle inspection

Defendant Volkswagen requests an order compelling plaintiff to produce the subject vehicle for inspection within fifteen days.

Defendant explains that on July 14, 2025, defendant sent its notice of representation to plaintiff's counsel informing plaintiff of its intent to inspect subject vehicle within 90-120 days and requested that plaintiff promptly provide her availability for the inspection. On February 12, 2026, defendant served plaintiff with a notice of vehicle inspection for April 14, 2026. On April 8, plaintiff served objections and requested that counsel meet and confer to reschedule the inspection on a date and time that was mutually agreeable. On April 8, defense counsel emailed plaintiff's counsel to meet and confer as to available dates for the inspection. Plaintiff's counsel did not respond. On April 15 and 23, defense counsel sent follow up correspondence. As of the filing date of the motion, plaintiff had not provided alternative dates.

In opposition, plaintiff argues the same as under the motion to compel plaintiff's deposition. Plaintiff also argues that defendant has not shown good cause for inspection.

In reply, defendant argues the same as above, that it acted in good faith and exhausted multiple meet and confer efforts. Defendant also argues that it has shown good cause as the subject vehicle and its component parts "are the most critical evidence in this lemon law case."

The Court finds that defendant served a valid and proper notice of inspection and that plaintiff did not serve any objections.

The motion is GRANTED.

ORDER

The motion to compel plaintiff's vehicle inspection is GRANTED. Plaintiff is ordered to appear for deposition at a mutually agreeable time within fifteen days.

The motion to compel plaintiff's deposition is GRANTED. Plaintiff is ordered to appear at a mutually agreeable time and place within fifteen days.

Defendant is ordered to give notice of ruling.